

Justification for Other than Full and Open Competition

A. Justification

1. **Contracting Office:** Defense Commissary Agency (DeCA) Pacific Contracting Office, Kadena Commissary, Japan, Unit 5156, Bldg.407, APO, AP 96368-5156.
2. **Type of Contract Action:** The contract action is solicitation of Indefinite Delivery Indefinite Quantity (IDIQ) Contract.
3. **Description of Supplies/Services:** DeCA has a requirement for the supply of fresh fruits and vegetables (FF&V), a non-brand name resale item that has no demonstrated or anticipated customer preference for specific brands. Rather, the customer preference is defined by a commercial product. The anticipated period of performance is a 12-month base period from August 24, 2025 through August 23, 2026, with four 12-month option periods. The total five year estimated value of Orders, based on historical sales, to be placed against the IDIQ contract is \$33,980,129.00. The Resale Stock Fund Activity, Defense-Wide Working Capital Fund provides funding.
4. **Authority Cited:** 10 U.S.C. §2484(f) as implemented by FAR 6.302-5(a)(1) and (2)(ii).
5. **Reason for Authority Cited:** The Contracting Office stated above is responsible for the procurement of commercial product (including brand-name and generic items) for resale in, at, or by commissary stores on behalf of the Secretary of Defense for which the exception to full and open competition is provided. The commercial products provided in accordance with this contract action will be sold in, at and by one or more commissary locations in South Korea.
6. **Efforts to Obtain Competition:** Notice will be publicized as required to the Governmentwide Point of Entry along with this justification notifying all parties of the Government's intent to limit competition for this requirement. The notice will be posted for at least 15 days prior to the issuance of a solicitation. The solicitation will be sent to five interested parties identified through market research with the capability and expressed interest to provide proposals for this requirement.
7. **Fair and Reasonable Price Determination and Contracting Officer Certification:** The Contracting Officer has determined that the price as defined in the solicitation will be able to be determined fair and reasonable based on the anticipation of receiving multiple proposals. Market research supports that quotes from two or more firms will be found to meet all technical requirements which will validate their pricing to be compared to each other, thus supporting price fair and reasonableness in accordance with FAR 15.404-1(b)(2)(i). In the event only one quote is either received or found to meet non-price factors, then methods identified in FAR 15.404-1(b)(2)(ii)-(vii) will be used to determine price fair and reasonable.
8. **Market Research:** In 2024, the DeCA Pacific Contracting Office and Category Management conducted an in-depth market research to solicit interested firms that can fulfill the FF&V requirements. On August 2024 through September 2024, DeCA issued a Request for Information (RFI) to six firms, with multiple rounds of follow-up questions to

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four firms who expressed interest in the requirement. The Government received valuable information that was used in tailoring and validating the Government Scope of Work. Due to the recency of the actions, the Market Research is deemed to be still valid and current.

- 9. Other Factors:** On March 25, 2025, the Government Accountability Office (GAO) sustained a bid protest (B-423246) submitted by E.K.K. Investments, LLC, regarding the Government's award of the Blanket Purchase Agreement (BPA) to Coast Pacific Food Distributors, Inc., Contract No. HQC00625A0001. DeCA is complying with GAO recommendations by cancelling the current BPA and pursuing an acquisition under Other Than Full and Open Competition, and will solicit offers from as many potential sources as is practicable under the circumstances.
- 10. Interested Sources:** The following five firms expressed interest: E.K.K. Investments, LLC; Coastal Pacific Food Distributors, Inc. (CPFD); Giant, Inc.; Shinsegae Food, Inc.; and Pacific Unlimited, Inc.
- 11. Action to Increase/Foster Competition:** In order to increase and foster competition, the follow-on competition will be publicized as required by subpart 5.2 to the Governmentwide Point of entry (GPE) at <https://www.sam.gov>

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B. Certifications

Technical Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

Printed Name	Signature
Title	Date

Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

Printed Name	Signature
Title	Date

Contracting Officer Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

Printed Name	Signature
Title	Date

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C. Reviews

Division Chief: I have reviewed this justification and find the justification adequate to support other than full and open competition.

Printed Name	Signature
Title	Date

General Counsel: I have reviewed this justification and find the justification adequate to support other than full and open competition.

Printed Name	Signature
Title	Date

Competition Advocate, as applicable: I have reviewed this justification and find the justification adequate to support other than full and open competition.

Printed Name	Signature
Title	Date

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D. Approval

Based on the foregoing justification, I hereby approve this justification for other than full and open competition pursuant to the authority cited provided the funds are available, or will be available, and provided that the supplies or services herein described have otherwise been authorized for acquisition.

Printed Name	Signature
Title	Date